

Tax Map and Parcel No.:
335-8.00-36.07 (Units 801 – 810)

Prepared by and Return to:
Jonathan E. Horner, Esquire
20184 Phillips Street
Rehoboth Beach, DE 19971

FIFTH AMENDMENT TO
DECLARATION OF DUTCHMAN'S HARVEST CONDOMINIUM
LEWES AND REHOBOTH HUNDRED, SUSSEX COUNTY, DELAWARE

THIS FIFTH AMENDMENT to the Declaration of Dutchman's Harvest Condominium Lewes and Rehoboth Hundred, Sussex County Delaware (the "Amendment") is made as of the 8th day of June, 2026, by LEWES ATTAINABLE HOUSING, LLC, a Delaware limited liability company, having an address of 18949 Coastal Highway, Unit 301, Rehoboth Beach, DE 19971 (the "Declarant").

RECITALS

WHEREAS, Declarant established Dutchman's Harvest Condominium (the "Condominium") under the provisions of the Delaware Uniform Common Interest Ownership Act, 25 Del. C. §81-101, et seq., as amended (hereinafter referred to as the "Act") pursuant to, among other thing: (i) that certain Declaration of Dutchman's Harvest Condominium dated the 26th day of June, 2025 and recorded in the Office of the Recorder of Deeds in and for Sussex County, State of Delaware ("Recorder's Office") in Deed Book 6325, Page 294, together with all amendments thereto, (collectively the "Declaration"); and (ii) the Bylaws for Dutchman's Harvest Condominium dated the 26th day of June, 2025 and recorded in the Recorder's Office in Deed Book 6326 Page 35 (together with all amendment thereto, collectively, the "Bylaws") and (iii) Condominium Declaration Plan – Dutchman's Harvest, Lewes and Rehoboth Hundred, Sussex County, Delaware, prepared by Davis, Bowen & Friedel, Inc., Architects, Engineers & Surveyors, dated June 18, 2025 and recorded in the Recorder's Office in Plot Book 454, Page 39 (together with all supplements and/or amendments thereto, collectively, the "Declaration Plan"), with respect to certain property located in Lewes and Rehoboth River Hundred, Sussex County, State of Delaware, as more particularly described in the Declaration.

WHEREAS, Declarant desires to expand the Condominium by amending the Declaration and the Declaration Plan to create, identify and add Unit 801 through 810, inclusive ("Unit 801 through 810, inclusive").

WHEREAS, on or before the recordation of this Amendment in the Recorder's Office, Declarant has filed in the Recorder's Office that certain Amended Declaration Plan, Amendment No. 5, Condominium Declaration Plan Building 8 Dutchman's Harvest, Lewes and

Rehoboth Hundred, Sussex County, Delaware, prepared by Davis, Bowen & Friedel, Inc. dated April 28, 2026 in Plot Book 472, Page 19 (the "Unit 801 through 810, inclusive Declaration Plan").

WHEREAS, all capitalized terms not defined herein shall have the respective meanings set forth in the Declaration as amended by this Amendment.

NOW, THEREFORE, witnesseth:

1. **Ratification.** The Declarant ratifies and restates the following:

(A) The Property, Units, Common Elements and Limited Common Elements that are the subject of this Amendment are being submitted to the provisions of the Act.

(B) The Land that is the subject of this Amendment is the Land in the Declaration, as amended.

(C) The Units, Common Elements and Limited Common Elements that are the subject of this Amendment are as described in the Declaration, as amended hereby, and the Declaration Plan, as amended by the Unit 801 through 810, inclusive Declaration Plan.

(D) The Property consists of the Units and Common Elements (including Limited Common Elements).

(E) The proportionate undivided interest, expressed as a percentage, assigned to each Unit that is the subject of this Amendment, together with all previously established Units, shall aggregate 100 percent and is established, for purposes of 25 Del. C. §81-101, et seq., as provided in the Declaration as amended by this Amendment, and as further restated on Schedules C attached hereto and made a part hereof.

(F) The proportionate undivided interest in the Common Elements may be altered by the recording of an amendment duly executed by the Declarant pursuant to the Declaration for the purpose of adding additional Units, together with Common Elements and Limited Common Elements, without the consent of Council or any Unit Owner.

(G) The Units that are the subject of this Amendment are subject to the purposes and restrictions set forth in the Declaration.

(H) The foregoing Recitals are incorporated herein and made a part of this Amendment.

2. **Amendments to Declaration.**

(A) Schedule C to the Declaration is hereby deleted in its entirety and Schedule C attached to this Amendment is hereby inserted in place thereof as a new Schedule C to the Declaration.

(B) All references in the Declaration to "Declaration Plan" shall be deemed to include the Unit 801 through 810, inclusive Declaration Plan. All references in the declaration to "Unit", "Common Elements" and "Limited Common Elements" shall be deemed to include Unit 801 through 810, inclusive and Common Elements and Limited Common Elements associated therewith as provided in the Declaration and as otherwise shown on the Unit 801 through 810, inclusive Declaration Plan. In the event of any inconsistencies in the description of the Unit, Common Elements or Limited Common Elements as described in the Declaration and depicted or shown on the Unit 801 through 810, inclusive Declaration Plan, the provisions of the Declaration shall govern and control. All references in the Declaration to the "Property" shall include the Land, Buildings, Units and Common Elements that are the subject of this Amendment.

3. Ratification of Declaration. The Declaration remains in full force and effect, as amended and modified by this Amendment.

[Remainder of Page Intentionally Blank]

IN WITNESS WHEREOF, the Declarant has hereunto set its hand and seal the day and year first above written.

Signed, Sealed And Delivered
In The Presence Of:

LEWES ATTAINABLE HOUSING, LLC, a
Delaware limited liability company

Haley Wallace
Witness

By: Jaime I. Zolper (Seal)
Name: Jaime I. Zolper
Title: Authorized Signatory

STATE OF DELAWARE)
) SS
SUSSEX COUNTY)

BE IT REMEMBERED that on this 9th day of June, 2026, came before me, the Subscriber, a Notary Public in and for the State and County aforesaid, Jaime I. Zolper, as Authorized Signatory of Lewes Attainable Housing, LLC, a Delaware limited liability company, on behalf of said company in its capacity as party to this Indenture, known to me personally to be such, and acknowledged this Indenture is the act and deed of such company.

GIVEN under my Hand and Seal of office, the day and year aforesaid.

Ann Margaret Donato (Seal)
Notary Public or Notarial Officer



DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM
SCHEDULE "C"

Percentage Interest

The following represent the respective percentages of ownership in the Common Elements for each Unit which shall be utilized for purpose of determining voting rights and the percentage share of each Unit for the expenses of, and relating to the various rights in, the Common Elements (which are being determined and calculated based on the Unit type of each Unit which is assigned based upon the various floor plan styles of the various Units, irrespective of any market or sales value) and shall be adjusted based on the actual number and type of Units constructed during each Expansion Phase.

<u>Unit Identifying #</u>	<u>Percentage</u>
101	1.66%
102	1.66%
103	1.66%
104	1.66%
105	1.66%
106	1.66%
107	1.66%
108	1.66%
109	1.66%
110	1.66%
201	1.66%
202	1.66%
203	1.66%
204	1.66%
205	1.66%
206	1.66%
207	1.66%
208	1.66%
209	1.66%
210	1.66%
301	1.66%
302	1.66%
303	1.66%
304	1.66%
305	1.66%
306	1.66%
307	1.66%
308	1.66%

309	1.66%
310	1.66%
601	1.66%
602	1.66%
603	1.66%
604	1.66%
605	1.66%
606	1.66%
607	1.66%
608	1.66%
609	1.66%
610	1.66%
701	1.66%
702	1.66%
703	1.66%
704	1.66%
705	1.66%
706	1.66%
707	1.66%
708	1.66%
709	1.66%
710	1.66%
801	1.66%
802	1.66%
803	1.66%
804	1.66%
805	1.66%
806	1.66%
807	1.66%
808	1.66%
809	1.66%
810	1.66%
Total %	100%

Between the recordation of this Declaration and the completion of all the Units, each Unit Owner's percentage of ownership in the Common Elements shall be adjusted, as applicable, in accordance with the terms of this Declaration and this Schedule shall be amended as provided under this Declaration to document such percentage interests.

*Pursuant to 25 Del. C. § 81-207(e), except for minor variations due to rounding, the sum of the undivided interests in the common elements allocated at any time to all the units must equal 1 if stated as a fraction or 100 percent if stated as a percentage. In the event of any discrepancy between an allocated interest and the result derived from application of the pertinent formula, then the allocated interest prevails.